

# M/s Bijnore Chemicals Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 27 February 2017 · Writ-C No. 30374 of 2014 · **Writ disposed of as infructuous.**

## HEADNOTE

Writ challenging additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005, earlier stayed without prejudice by following a similar pending petition, was disposed of as infructuous on the petitioner's statement; the demand was not decided on merits.

## FACTUAL SUMMARY

M/s Bijnore Chemicals Pvt. Ltd. challenged a 16 April 2014 demand notice of Paschimanchal Vidyut Vitran Nigam Ltd. seeking additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 28 May 2014 a Division Bench (Krishna Murari and Vijay Lakshmi, JJ.) connected the matter with Writ Petition (C) No. 51844 of 2009 and, following a stay in M/s Supreme Ceramics Limited, restrained the respondents from demanding additional security until further orders. On 27 February 2017 counsel submitted that, with the passage of time, the petition had become infructuous.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.20

additional security

### HOLDING

On the petitioner's statement that the writ had become infructuous with the passage of time, the Division Bench disposed of the petition as infructuous, without deciding whether additional security under clause 4.20 was lawfully demanded. The 28 May 2014 interim restraint on that demand, granted without prejudice by following a stay in a connected similar petition, thus lapsed without a merits ruling. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER ADDITIONAL SECURITY DEMANDED UNDER CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS LAWFUL

2014 stay was without prejudice; 2017 disposal was as infructuous on counsel's statement. ¶ 1

## TABLE OF AUTHORITIES

| AUTHORITY                                                                                                                         | PROPOSITION | HOW TREATED | CITED BY   | TREATMENT |
|-----------------------------------------------------------------------------------------------------------------------------------|-------------|-------------|------------|-----------|
| M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.<br>Writ Petition No. 51844 of 2009 (order dated 7.10.2009) |             |             | 2014 order | Referred  |